

# Track 1 — Chapter Build Pass

MPEP Chapter 700 · Examination of Applications

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Track 1 — Chapter Build Pass. Format: plain-English rule card → one worked example → one quiz question, per rule. A chapter close-out practice set and a memorize-this list follow, with all quiz answers consolidated in an Answer Key on the final pages. Read entirely offline — no interaction required.

Accuracy note: content is drawn from your uploaded MPEP file, translated into plain English. Spot-check anything with a specific legal test, number, or citation against your MPEP if precision matters for a specific question.

## Overview: The Prosecution Lifecycle

Chapter 700 covers the mechanics of back-and-forth prosecution: how Office actions work, when they become final, how much time applicants get to respond, and the tools (interviews, RCE) available along the way. This is dense with specific deadlines and procedural triggers — a high-yield area for straightforward, fact-pattern-based questions.

### Rule 1: Compact Prosecution & the First Office Action (§707)

#### PLAIN ENGLISH

Under the principle of **compact prosecution**, examiners should identify and state ALL grounds for rejection in the first Office action, even if a claim is rejected for multiple independent reasons — not save issues for later actions. An Office action must include a clear statement of the rejection's basis and how it might be overcome.

#### EXAMPLE

If a claim has both a §102 anticipation problem and a §112(b) indefiniteness problem, the examiner should raise both in the first Office action rather than only raising the §102 issue and saving the §112 issue for a later action after the §102 issue is resolved.

#### QUIZ

**Compact prosecution generally requires examiners to:**

- (A) Raise only the strongest single rejection first
- (B) State all grounds for rejection in the first Office action
- (C) Wait until after an interview to raise any rejections
- (D) Only raise rejections after a final Office action

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### Rule 2: Non-Final vs. Final Office Actions (§706.07)

#### PLAIN ENGLISH

The first Office action on the merits is normally **non-final** — the applicant can freely amend claims and argue. A second or subsequent action is typically made **final** if it doesn't rely on new grounds necessitated by the applicant's own amendment, unless new prior art was needed only because of an applicant amendment (which can still make an action final) or new grounds were introduced solely due to an amendment. After final, amendments are entered only if they place the application in condition for allowance or don't require further search/consideration.

#### EXAMPLE

An applicant amends claims after a first non-final action, and the examiner's second action rejects the amended claims using art that was only newly needed because of the applicant's amendment. This second action can still properly be made final, even though it applies a new rejection.

## QUIZ

**After a final Office action, an applicant files an amendment. When must the examiner enter it?**

- (A) Always, regardless of content
- (B) Only if it places the application in condition for allowance or doesn't require further search/consideration
- (C) Never, once an action is final
- (D) Only if filed with a Notice of Appeal

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## Rule 3: Response Periods & Extensions of Time (§710)

### PLAIN ENGLISH

A standard non-final or final Office action sets a shortened statutory period, typically **3 months**, extendable up to a maximum of **6 months total** from the mailing date (via extension fees), because the true statutory period under §133 is 6 months. Failing to respond within the maximum period (including any extension) results in abandonment.

### EXAMPLE

An Office action sets a 3-month shortened statutory period. If the applicant doesn't respond by then, they can file for a 1-, 2-, or 3-month extension (with an escalating fee) — but the outer limit remains 6 months from the mailing date of the action, since that's the statutory maximum.

## QUIZ

**An Office action sets a 3-month shortened statutory period. What is the absolute maximum time (with extensions) to respond before abandonment, measured from the mailing date?**

- (A) 3 months, no extensions allowed
- (B) 6 months
- (C) 12 months
- (D) 1 month

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## Rule 4: Interviews (§713)

### PLAIN ENGLISH

Applicants may request an interview (in person, by phone, or by video) with the examiner to discuss the application. Interviews are encouraged, especially after a first Office action, to clarify issues and potentially reach agreement on allowable claims — but any agreement reached must still be confirmed in writing (an interview summary and, typically, a follow-up written response) to be of record.

### EXAMPLE

After an examiner interview where the parties orally agree that adding a specific limitation would overcome the rejection, the applicant must still file a written amendment incorporating that limitation and the examiner must complete an interview summary — an oral agreement alone doesn't amend the application of record.

## QUIZ

**An examiner and applicant orally agree during an interview that a proposed claim amendment would be allowable. Is anything further required?**

- (A) No, the oral agreement is self-executing
- (B) Yes — a written amendment and interview summary are needed to make it of record
- (C) Only the examiner needs to file paperwork
- (D) The application is automatically allowed at that point

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## Rule 5: Duty of Disclosure / Rule 56 (§2000s, cross-referenced in 700)

### PLAIN ENGLISH

Under 37 C.F.R. §1.56, everyone substantively involved in prosecuting an application (inventors, attorneys/agents, others substantively involved) has a duty to disclose information **material to patentability** that they're aware of, via an Information Disclosure Statement (IDS). Information is material if it's not cumulative and either establishes a prima facie case of unpatentability or refutes/is inconsistent with an argument the applicant is making. Failure to comply can support a finding of inequitable conduct.

### EXAMPLE

An attorney becomes aware, through a related foreign application, of a highly relevant prior art reference not yet of record in the U.S. application. Under Rule 56, the attorney must submit that reference via an IDS, even though it wasn't found by the examiner and even though disclosing it might hurt the application's chances.

## QUIZ

**Under Rule 56, who has a duty to disclose material information to the USPTO?**

- (A) Only the named inventors
- (B) Only registered patent attorneys
- (C) Everyone substantively involved in preparing or prosecuting the application
- (D) Only the USPTO examiner

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## Rule 6: The Request for Continued Examination (RCE) (§706.07(h))

### PLAIN ENGLISH

After a final rejection (or allowance), an applicant can file a **Request for Continued Examination (RCE)** along with a fee and typically a submission (amendment/argument/evidence) to reopen prosecution without filing a whole new application. An RCE is only available for utility and plant applications, not design applications, and can't be filed if the application is already under appeal without withdrawing the appeal or after issuance.

### EXAMPLE

After receiving a final rejection the applicant disagrees with but also wants to amend claims to address, rather than appealing immediately, the applicant can file an RCE with the amendment — resetting prosecution to a non-final status without abandoning the application or starting an entirely new filing.

## QUIZ

**Is an RCE available for a design patent application?**

- (A) Yes, RCEs work the same for all application types
  - (B) No — RCE practice is unavailable for design applications
  - (C) Only if filed within 1 month of final rejection
  - (D) Only with USPTO Director approval
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## Chapter Close-Out: Mixed Practice Set

Mixing all rules above, in exam-style fact patterns. Answers are in the Answer Key at the end.

**1. An examiner's second Office action relies on a new prior art reference that only became necessary because of the applicant's own claim amendment. Can this action properly be made final?**

- (A) No, new art always requires a non-final action
- (B) Yes, if the new ground was necessitated by the applicant's amendment
- (C) No, only the third action can be final
- (D) Yes, but only with Director approval

**2. An Office action is mailed with a 2-month shortened statutory period. What is the maximum extended response period available?**

- (A) 2 months only, no extensions
- (B) 6 months from mailing, via extension fees
- (C) 12 months
- (D) 3 months

**3. Which of the following would NOT typically be considered material information requiring IDS disclosure under Rule 56?**

- (A) A reference cumulative of information already of record
- (B) A reference establishing a prima facie case of unpatentability
- (C) Information inconsistent with an argument the applicant is making
- (D) A reference not yet found by the examiner but highly relevant

**4. An applicant wants to reopen prosecution after a final rejection by submitting new arguments and an amendment, without filing a brand-new application. What's the appropriate mechanism for a utility application?**

- (A) A continuation application only
- (B) Request for Continued Examination (RCE)
- (C) A reissue application
- (D) A certificate of correction

**5. True or False: An oral agreement reached during an examiner interview is immediately binding without any further written submission.**

- (A) True
- (B) False

## Memorize This: Key Tests & Terms

- **Compact prosecution**: state ALL rejection grounds in the first Office action.
- First action = non-final by default; later actions can be **final**, including when new grounds are necessitated by the applicant's own amendment.
- Response period ceiling: **6 months from mailing**, regardless of the initial shortened statutory period, via extension fees.
- Interview agreements need **written confirmation** (amendment + interview summary) to count.
- Rule 56 duty of disclosure covers **everyone substantively involved**, not just inventors; only non-cumulative, material info triggers it.
- **RCE** = utility/plant applications only, not design; resets prosecution to non-final without a new filing.

# Answer Key

All quiz answers for this PDF, in one place. Rule-card quizzes first, then the chapter close-out set.

## Rule-Card Quizzes

### Rule 1: Compact Prosecution & the First Office Action (§707)

Compact prosecution generally requires examiners to:

Answer: B

Compact prosecution avoids piecemeal examination — the goal is to get all issues on the table as early as possible to promote prompt, complete examination.

### Rule 2: Non-Final vs. Final Office Actions (§706.07)

After a final Office action, an applicant files an amendment. When must the examiner enter it?

Answer: B

Post-final amendments are entered at the examiner's discretion, generally limited to those that either fully resolve all issues (condition for allowance) or don't require additional search/analysis.

### Rule 3: Response Periods & Extensions of Time (§710)

An Office action sets a 3-month shortened statutory period. What is the absolute maximum time (with extensions) to respond before abandonment, measured from the mailing date?

Answer: B

6 months is the statutory maximum under 35 U.S.C. §133, regardless of how short the initially set shortened statutory period is — extension fees can buy back time up to, but not beyond, that 6-month ceiling.

### Rule 4: Interviews (§713)

An examiner and applicant orally agree during an interview that a proposed claim amendment would be allowable. Is anything further required?

Answer: B

Oral agreements at an interview aren't self-executing — the written record (amendment plus interview summary) is what actually changes the application's status.

### Rule 5: Duty of Disclosure / Rule 56 (§2000s, cross-referenced in 700)

Under Rule 56, who has a duty to disclose material information to the USPTO?

Answer: C

The duty extends beyond just inventors — it covers attorneys, agents, and anyone else substantively involved in prosecution, a commonly tested breadth point.



## **Rule 6: The Request for Continued Examination (RCE) (§706.07(h))**

Is an RCE available for a design patent application?

Answer: B

RCE practice under 37 C.F.R. §1.114 is explicitly limited to utility and plant applications — design applications use a different continued prosecution mechanism (CPA), a frequently tested distinction.

## **Chapter Close-Out Quiz**

### **1. (B)**

New grounds necessitated by an applicant's own amendment can support finality even though the ground is new — a frequently tested nuance about what keeps an action final.

### **2. (B)**

Regardless of the initially set shortened statutory period, the statutory ceiling remains 6 months from mailing, purchasable via escalating extension fees.

### **3. (A)**

Cumulative information (already of record or duplicative) isn't material under Rule 56 — only non-cumulative information affecting patentability triggers the duty.

### **4. (B)**

RCE is the standard mechanism for utility applications to reopen prosecution post-final without a new filing; design applications use CPA practice instead.

### **5. (B) False**

Interview outcomes need a written amendment and interview summary to be of record — oral agreement alone doesn't bind the application.